

Employment Contract

Bhavnes Poonia

Email: bhavnespoonia@gmail.com

Dear Bhavnes,

Thank you for participating in our interview rounds. We are pleased to extend to you this offer of employment to join Third Wave Labs Private Limited (the "Company"), on the terms and conditions set out in this contract of employment ("Agreement").

Engagement: Your title shall be Area Manager (Full-Time) and your date of joining and reporting date shall be on or before 31-August-2026 in Gurugram. You will be based in Gurugram and will be reporting to such person as may be indicated by the Company from time to time. During the tenure of your employment with the Company, you shall be required to work exclusively for the Company unless you obtain prior written consent from the Company with respect to any outside employment or business activities. You agree to provide services exclusively to the Company and not to enter into any form of employment or contract with other organization.

Salary: So long as you remain actively employed by the Company, you will be eligible for the salary as prescribed in the attached Annexure A. Your salary less applicable deductions will be paid in accordance with the applicable laws of India. Your salary may change at the discretion of the Company, upon advance written notice to you. TDS, PF and ESIC or any other statutory liabilities (if any) be falling within your salary structure shall be subject to mandatory employment deductions as per the statutory norms.

Appraisals: In the course of the employment and on an annual basis, depending upon your performance, Company's performance. Your contribution to Company's growth, any extraordinary merit, high quality effort, commitment to the Company, commitment to the work and other factors which may be taken into account by the Company, the Company may revise the Salary payable to you.

Bonus: You will also be eligible to be paid a discretionary bonus amount at the end of the relevant financial year. Please note that such bonus amount(s) are determined at the Company's sole discretion, based on numerous factors as determined by the Company from time to time. These factors may include, but are not limited to Company's performance and your contribution to Company's growth. The parameters include individual performance and contribution and other factors, which the Company deems relevant in a given year and for its business. To be eligible for the bonus amount you must be employed with the Company and must not have given or received notice of termination of your employment, at the time the bonus awards are made. Entitlement to a bonus amount payment is therefore, not automatic and no single award or series of awards, creates an entitlement for further bonus amount payment(s). In addition, the entitlement to be considered for the payment of a discretionary bonus amount does not confer any entitlement to a payment which accrues on a daily basis. The nature and amount of bonus, if any, will be determined at the discretion of the Company. The payment of any bonus in respect of any year and the amount of such bonus, if paid, shall not give rise to any expectation for the payment or amount of any bonus in any future year of employment. You acknowledge that no representation, assurance or guarantee has been provided by or on behalf of the Company with respect to the payment of any discretionary bonus amount and you also acknowledge that you may receive a nil bonus. Company reserves the right to defer all or part of any bonus award payable to you, either as cash or stock.

Probation: You would be on probation for a period of 90 days following the commencement of employment. Your confirmation at the end of the probation period is subject to the discretion of the Company and such discretion would be based on your contribution as an employee of the Company.

Notice Period: The notice period applicable during probation for all employees across all positions joining the Company is 1 month. The notice period after confirmation shall be 1 month or as the company's compliance team will decide.

Resignation: If you resign from your position with the Company, you are required to provide written notice of resignation and serve a notice period as stipulated above.

Termination: The Company may elect (but shall not be obliged) to terminate your employment prior to the expiry of the notice period and make a payment in lieu of notice, unless your employment is terminated for "Cause", in which case the Company shall have the right to terminate your employment with immediate effect and with no requirement for notice period or payment in lieu thereof.

"Cause", as used herein, means:

1. your material neglect or material failure to perform your job duties and responsibilities,
2. your failure or refusal after due notice, to comply with lawful policies or directives of Company or its designated official(s),

3. your material breach of any contract or agreement between you and Company and/or your material breach of any statutory duty, fiduciary duty or any other obligation that you owe to the Company,
4. your commission of an act of fraud, theft, embezzlement or other criminal offence against the Company or your engaging in unprofessional, unethical or other intentional acts that materially discredits the Company or are materially detrimental to the reputation character or standing of the Company, or
5. your conviction with respect to any crime punishable under the laws of India.

Please note that employment is for no fixed term and either you or the Company may terminate the employment relationship at any time for any reason, in accordance with this Agreement.

Full and Final Settlement: The FNF settlement process takes up to 45 Days to be completed from the date of the employee's resignation.

Non-solicitation: You agree that during the term of your employment with the Company and for three (3) years after the cessation thereof, regardless of the reason for the cessation of your employment you will not, directly or indirectly on your own behalf or on behalf of or in conjunction with any person or legal entity, recruit, solicit, or induce, or attempt to recruit, solicit, or induce, any employee of the Company, to cease their employment relationship with the Company.

Conditions: Please note that this offer is conditional upon the following terms and may be withdrawn or rescinded without liability on our part should any or all of them not be met:

1. Background check, if conducted: Successful completion of a background check, as well as on your satisfactorily meeting all pre-employment requirements. This background check may include verification of identity and information provided by you to the Company as part of the application process. Provision of false or misleading information may be grounds for the withdrawal of this offer or once your employment has begun, for disciplinary action against you including termination of employment.
2. Company Policies: Your agreement to comply with and compliance with the Company's policies provided to you from time to time. Please take the time to familiarize yourself with these policies as they are made available to you by the Company from time to time.
3. Work ethics: You shall ensure that any action or work shall always be carried out in the best interest of the Company and you shall strive to enhance its reputation, performance and goodwill. No activities, which have an adverse impact on the Company's reputation shall be engaged in by you.

Confidentiality: You will keep in strictest confidence all past and present discussions or correspondence(s) relating to your application and the resulting employment, this Agreement, as well as any information, whether designated as confidential or not, that you receive during the course of your employment with the Company.

Company's Confidential Information : You understand that you may be provided access to Company's Confidential Information. You agree to use the Company's Confidential Information solely for the purpose of performing the services expected of you by the Company as a part of your employment. You shall not disclose to any third party any details regarding the Company's business, including, without limitation any information regarding any of its client(s), vendor(s), third party engagements, business plans, price points ("Confidential Information").

Unless instructed otherwise by the Company, you shall not:

- i. make copies of any Confidential Information or any content based on the concepts contained within the Confidential Information for personal use or for distribution unless requested to do so by the Company, or
- ii. use Confidential Information other than solely for the benefit of the Company.

Your obligation to maintain confidentiality will survive termination of this Agreement and will remain in effect indefinitely.

Intellectual Property: The Company owns any intellectual property that may be created by you during the course of your employment and it shall thereon have all the necessary rights to retain it.

Indemnification: You will indemnify and always keep indemnified the Company and its founders, directors and employees from all claims, costs, liabilities, obligations and consequences of whatsoever nature, as a result from your misdeed, misconduct, negligence, misuse of internet and other facilities as provided by the Company.

Dispute Resolution: The terms and conditions of this Agreement in the nature of contract of employment shall be governed and interpreted according to the laws of India. Any dispute, controversy or claim arising out of or in connection with this Agreement shall be settled at the courts of New Delhi.

Entire Agreement: This Agreement constitutes the entire Agreement between the parties and supersedes any previous written or oral Agreement or understanding between them in relation to the matters dealt with in it (including any statements made during your interviews of other recruitment process). You acknowledge that you have not been induced to enter into this Agreement by any representation, warranty or undertaking not expressly incorporated herein.

Variations: No variations to this Agreement shall be valid unless they are authorized in writing by the Company.

Acceptance: To accept this offer of employment, you will need to print this offer letter, sign it on each page and provide us with an original signed version.

We are excited to have you as a part of the Company and wish you a long-standing association with us.

Sincerely,

Signature:

Name: Saurabh Pandey

Chief Executive Officer

Accepted by

Signature:

Bhavnesb Poonia

Date: ____/____/____

ANNEXURE A

Compensation is structured as follows, payable monthly and subject to applicable statutory deductions:

- i. Fixed Salary: INR 5,16,000 per annum (INR 43,000 per month, fixed).
- ii. Fuel Allowance / Incentive: INR 5,000 per month, payable towards fuel/conveyance in connection with your field duties, subject to Company policy.
- iii. Total Monthly Emoluments: INR 48,000 per month (INR 5,76,000 per annum).